

STATE OF NEW YORK

1863--B

2025-2026 Regular Sessions

IN ASSEMBLY

January 14, 2025

Introduced by M. of A. ROSENTHAL, REYES -- read once and referred to the Committee on Aging -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the administrative code of the city of New York and the real property tax law, in relation to notice regarding the rent increase exemption for low income elderly persons and persons with disabilities programs

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The administrative code of the city of New York is amended by adding a new section 26-605.2 to read as follows:

§ 26-605.2 Required notice. (a) A tenant residing in a dwelling unit subject to the provisions of this chapter shall be furnished a notice informing such tenant about the tenant's potential eligibility for a rent increase exemption pursuant to this chapter and sections four hundred sixty-seven-b and four hundred sixty-seven-c of the the real property tax law. The form and content of such notice shall be promulgated as required by paragraph i of subdivision three of section four hundred sixty-seven-b of the real property tax law, provided that such notice shall clearly and conspicuously display the eligibility requirements for the rent increase exemption and the website address and telephone number where tenants may obtain more information.

(b) The notice required by subdivision (a) of this section shall be furnished by the following agencies or individuals at the same time as the notice required by the occurrence of the following events:

(1) The state commissioner of housing and community renewal shall provide such notice to a tenant in the event of:

(i) Receipt of an application for a rent adjustment due to a major capital improvement;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 (ii) A rent increase pursuant to section thirty-one of the private
2 housing finance law;

3 (iii) Receipt of the annual certification required by section thirty-
4 one of the private housing finance law; and

5 (iv) For dwelling units subject to chapter three of this title, a
6 maximum base rent adjustment pursuant to paragraph one of subdivision g
7 of section 26-405 of this title.

8 (2) The landlord of a dwelling unit shall provide such notice to a
9 tenant:

10 (i) With an initial lease and any renewal lease; and

11 (ii) Upon the annual registration of a housing accommodation as
12 required by section 26-517 of this title.

13 (c) When notice is furnished pursuant to paragraph one of subdivision
14 (b) of this section, such notice shall include specific information as
15 to the agency providing such notice.

16 § 2. Subparagraph 2 of paragraph i of subdivision 3 of section 467-b
17 of the real property tax law, as added by chapter 424 of the laws of
18 2015, is amended to read as follows:

19 (2) (A) a landlord of any housing accommodation subject to provisions
20 of the local emergency housing rent control act, the emergency tenant
21 protection act of nineteen seventy-four or any local laws enacted pursu-
22 ant thereto, the emergency housing rent control law or the rent stabili-
23 zation law of nineteen hundred sixty-nine shall, at least once annually,
24 including with a new lease and all renewal leases and upon the annual
25 registration of a housing accommodation as required by section 26-517 of
26 the administrative code of the city of New York delivered to the occu-
27 pant of such accommodation, provide the informational material describ-
28 ing eligibility for and the benefits of the senior citizen rent increase
29 exemption program and the disability rent increase exemption program, as
30 provided by the entity administering the program pursuant to subpara-
31 graph one of this paragraph.

32 (B) The notice required by clause (A) of this subparagraph shall be
33 furnished by the state commissioner of housing and community renewal to
34 a tenant at the same time as:

35 (i) Receipt of an application for a rent adjustment due to a major
36 capital improvement;

37 (ii) A rent increase pursuant to section thirty-one of the private
38 housing finance law;

39 (iii) Receipt of the annual certification required by section thirty-
40 one of the private housing finance law; and

41 (iv) For dwelling units subject to chapter three of title twenty-six
42 of the administrative code of the city of New York, a maximum base rent
43 adjustment pursuant to paragraph one of subdivision g of section 26-405
44 of the administrative code of the city of New York.

45 (C) When notice is furnished pursuant to clause (B) of this subpara-
46 graph, such notice shall include specific information as to the agency
47 providing such notice.

48 § 3. Subdivision 3 of section 467-c of the real property tax law is
49 amended by adding a new paragraph e to read as follows:

50 e. (1) Notwithstanding any provision of law to the contrary, a tenant
51 residing in a dwelling unit subject to the provisions of this section
52 shall be furnished a notice informing such tenant about the tenant's
53 potential eligibility for a rent increase exemption pursuant to this
54 section. The form and content of such notice shall be promulgated as
55 required by paragraph i of subdivision three of section four hundred
56 sixty-seven-b of this title.

1 (2) The notice required by subparagraph one of this paragraph shall be
2 furnished by the following agencies or individuals at the same time as
3 the notice required by the occurrence of the following events:

4 (A) The state commissioner of housing and community renewal shall
5 provide such notice to a tenant in the event of:

6 (i) Receipt of an application for a rent adjustment due to a major
7 capital improvement;

8 (ii) A rent increase pursuant to section thirty-one of the private
9 housing finance law;

10 (iii) Receipt of the annual certification required by section thirty-
11 one of the private housing finance law; and

12 (iv) For dwelling units subject to chapter three of title twenty-six
13 of the administrative code of the city of New York, a maximum base rent
14 adjustment pursuant to paragraph one of subdivision g of section 26-405
15 of the administrative code of the city of New York.

16 (B) The landlord of a dwelling unit shall provide such notice to a
17 tenant:

18 (i) With an initial lease and any renewal lease; and

19 (ii) Upon the annual registration of a housing accommodation as
20 required by section 26-517 of the administrative code of the city of New
21 York.

22 (3) When notice is furnished pursuant to clause (A) of subparagraph
23 two of this paragraph, such notice shall include specific information as
24 to the agency providing such notice.

25 § 4. This act shall take effect on the thirtieth day after it shall
26 have become a law. Effective immediately, the addition, amendment
27 and/or repeal of any rule or regulation necessary for the implementation
28 of this act on its effective date are authorized to be made and
29 completed on or before such effective date.